In 1986, President Zail Singh exercised the pocket veto with respect to the Indian Post Office (Amendment) Bill. The bill, passed by the Rajiv Gandhi Government, imposed restrictions on the freedom of press and hence, was widely criticised. After three years, in 1989, the next President R Venkataraman sent the bill back for reconsideration, but the new National Front Government decided to drop the bill.

It should be noted here that the President has no veto power in respect of a constitutional amendment bill. The 24th Constitutional Amendment Act of 1971 made it obligatory for the President to give his assent to a constitutional amendment bill.



Presidential Veto over State Legislation

The President has veto power with respect to state legislation also. A bill passed by a state legislature can become an act only if it receives the assent of the governor or the President (in case the bill is reserved for the consideration of the President).

When a bill, passed by a state legislature, is presented to the governor for his/her assent, he/she has four alternatives (under Article 200 of the Constitution):

1. He/she may give his/her assent to the bill, or
2. He/she may withhold his/her assent to the bill, or
3. He/she may return the bill (if it is not a money bill) for reconsideration of the state legislature, or
4. He/she may reserve the bill for the consideration of the President.

When a bill is reserved by the governor for the consideration of the President, the President has three alternatives (Under Article 201 of the Constitution):

1. He/she may give his/her assent to the bill, or
2. He/she may withhold his/her assent to the bill, or
3. He/she may direct the governor to return the bill (if it is not a money bill) for the reconsideration of the state legislature. If the bill is passed again by the state legislature with or without amendments and presented again to the President for his/her assent, the President is not bound to give his/her assent to the bill. This means that the state legislature cannot override the veto power of the President. Further, the Constitution has not prescribed any time limit within which the President has to take decision with regard to a bill reserved by the governor for his/her consideration. Hence, the President can exercise pocket veto in respect of state legislation also.

Table 18.2 summarises the discussion on the veto power of the President with regard to Central as well as state legislation.

Table 18.2 Veto Power of the President at a Glance